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Case Number: 22STCV10043 Hearing Date: August 28, 2026 Dept: T

Stacey Joel Hunt, Jr. vs. Tesla

Motors, Inc., et al.

Motion

to Set Aside an Order Establishing Admissions

Moving Party: Defendant

Tesla, Inc.

Responding Party: Plaintiff

Stacey Joel Hunt, Jr

Tentative Ruling: Deny

BACKGROUND

This

is a motor vehicle and general negligence action arising from an alleged collision on October 14, 2021, at the intersection of Olympic Boulevard and La Peer Drive in Beverly Hills, California.

On

August 25, 2023, the Court granted Plaintiff Stacey Joel Hunt, Jr.'s ("Plaintiff") motion to deem a first set of requests for admission directed at Defendant Tesla, Inc. ("Defendant") as admitted.
(Min. Order, 8/25/23.)

Defendant

now moves to set aside this order by seeking leave for the withdrawal of each admission that was deemed admitted against it.

Plaintiff

opposes. Pursuant to the Court's order granting Defendant's ex parte application to advance the hearing date for the instant motion, Defendant shall have the opportunity to orally reply at the hearing. (Min. Order, 8/20/26.)

ANALYSIS

I.

Legal

Standard

Code of Civil Procedure section 2033.300(a) states, "A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties." Section 2033.300(b) states, "The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits."

The "mistake, inadvertence, or excusable neglect" under section 2033.300 has similar meanings as those words used in Code of Civil Procedure section 473(b). (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1419.) Under section 473(b), "excusable" means whether a reasonably prudent person under the same or similar circumstances might have made the same error. (Solv-All v. Superior Court (2005) 131 Cal.App.4th 1003, 1007.)

"Because the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court's discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party's action or defense on the merits." (New Albertsons, Inc., supra, 168 Cal.App.4th at pp. 1420–1421.)

II.

Discussion

On March

8, 2023, Plaintiff propounded a first set of requests for admission on

Defendant by email. (Rodriguez Decl. ¶

11.) On May 22, 2023, after Defendant

failed to respond to the admission requests, Plaintiff moved to deem these

requests admitted. (Id. ¶¶ 24–25.) On August 23, 2023, during the pendency of Plaintiff's

motion, Defendant served untimely responses to the admission requests that were

verified by Defendant Lawrence Richard Rodriguez ("Rodriguez"). (Id. ¶ 31.)

At

the August 25, 2023, hearing, Defendant's former counsel Michael Weiler

informed the Court that verified responses to the admission requests had been

served and that the responses contained no objections. (Weiler Decl. ¶ 5.) However, when asked

by the Court, Weiler could not explain why Defendant failed to file a

declaration confirming service of these responses prior to the hearing. (Id. ¶ 6.) When asked if the

responses were received, Plaintiff's counsel confirmed service but clearly

stated that she could not verify the validity of these untimely responses given

the timing of service, and the motion was ultimately granted. (See Schaffer Decl. ¶ 3, Exh A.) On August 31,

2023, Defendant inexplicably filed an objection to the notice of ruling on this

motion in which it apparently sought to relitigate the merits of the Court's

ruling. (See Rodriguez ¶ 36, Exh. 11.) Otherwise, it appears that Defendant failed

to take any procedurally available action to challenge this ruling, such as

moving for reconsideration or petitioning for a writ of mandate, and that

Defendant failed to seek relief from this ruling until August 18, 2026, nearly

three years after the admissions were deemed admitted.

In now moving for relief under Section 2033.300(b)

based on the purportedly "good-faith, excusable mistake" by its former counsel Andrew Nelson, a "single misstep" which

Defendant describes as "prior counsel's failure to file, in advance of the

hearing, a declaration and proof of service placing the fact of service on the

Court's record," Defendant submits Nelson's

declaration. (Opp'n, at p. 7.) Nelson declares that "[he] made the decision not to file a

separate declaration and proof of service with the Court establishing that

Tesla's verified responses had been served" and did so "because Tesla had in

fact served complete, verified, code-compliant responses before the hearing,

and [he] had no reason to believe that opposing counsel would dispute that the

responses had been served.” (Nelson Decl.

¶ 7.) Nelson admits that he mistakenly

“believed that filing a separate declaration proving service in advance of the hearing was unnecessary” (ibid.), as he “did not appreciate that the Court would require record evidence of pre-hearing service before declining to deem the requests admitted.” (Id.

¶ 8.)

However, a momentary review of the purportedly

verified, code-compliant responses that were served on August 23, 2023, makes

plain that this “single misstep” was not so singular. (See Rodriguez Decl. ¶ 32, Exh. 9.) In particular, the verification served with Defendant’s

responses was signed by Rodriguez in his capacity as a “party to this action”

and also declared under penalty of perjury that the matters stated in the

responses were “true of [his] own knowledge, except as to those matters which are stated on information and belief, and as to those matters, [he] believe[s] them to be true.” (Ibid.) As Code of Civil Procedure section

2033.240(a) requires that “[t]he party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objection,” and as Defendant did not verify the responses served on August 23,

the responses were unverified and, thus, equivalent to no response at all. (Appleton v. Superior Court (1988) 206

Cal.App.3d 632, 636 [“Unsworn responses are tantamount to no responses at all.”].) Accordingly, regardless of whether Nelson’s

purported mistake regarding the necessity of filing a declaration was

excusable, the indisputable fact that Defendant failed to properly serve Plaintiff

with verified, code-compliant responses before the August 25 hearing

would have resulted in the same ruling given Code of Civil Procedure section 2033.280(c)’s requirements.

Moreover, even if a proper verification had been

served, Defendant’s reliance on Nelson’s

“single misstep” as a mistake warranting relief under Section

2033.300(b) is also misplaced given the nature of Nelson’s purported

mistake. Specifically, under Section

473(b), a mistake based on a finding of professional incompetence, general

ignorance of the law, or unjustifiable negligence in discovering the law provides no ground for relief. (Hearn v.

Howard (2009) 177 Cal.App.4th 1193, 1206.)

By applying this similar meaning of “mistake” to the circumstances

presented here, the Court finds that Defendant failed to demonstrate that

Nelson's failure to submit a proof of service or declaration was a mistake, let alone an excusable mistake warranting the requested relief.

Here, based on Nelson's declaration and Defendant's reliance on it, it is evident that neither appreciate the true nature of the mistake that Nelson made, as service of a proposed response before a hearing is only one component of a trial court's requisite determination as to whether it "shall" make an order to deem admissions requests admitted under Section 2033.280(c). "[I]n the event timely RFA responses are not served, the court is required to grant the propounding party's deemed admitted motion "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778 [quoting Code Civ. Proc. § 2033.280], emphasis added.) As the service and substance of the proposed responses must be considered by the Court in making this determination, the characterization of Nelson's mistake as the mere failure to file a declaration and proof of service ignores this necessary, second component required by Section 2033.280(c) to avoid the devastating effects of failing to respond to a set of requests for admissions. (See Demyer v. Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 400.) Such a mistake amounts to the type of professional incompetence, general ignorance, or unjustifiable negligence that warrants no relief. Thus, given these circumstances, it is clear that Nelson's mistake was inexcusable and cannot support relief under Section 2033.300(b).

Furthermore, as Defendant's unjustified, nearly three-year delay in seeking relief would substantially prejudice Plaintiff due to his reliance on the effect of these admissions in developing a litigation strategy and litigating this action over the past three years, this alternative basis would also support denial of the motion under Section 2033.300(b). (See deRubertis Decl. ¶¶ 1–5.)

Therefore, as no relief is available under Section 2033.300(b), the motion to set aside the order establishing admissions is denied.

RULING

Defendant

Tesla, Inc.'s Motion to Set Aside an Order Establishing Admissions is DENIED.